

## 26PR00283 Matter of May Romek

County: santa-barbara

Division: Probate

Hearing date: 2026-07-29

Motion: Petition to Enforce Power of Attorney

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Tentative Ruling: Matter of May Romek

Case Number

26PR00283

Case Type

Probate

Hearing Date / Time

Wed, 07/29/2026 - 09:30

Nature of Proceedings

Petition to Enforce Power of Attorney

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Defective Service. Petitions to Enforce Power of Attorney must be served on the third party via personal service. Probate Code section 4544(b) states:

In the case of a petition to compel a third person to honor the authority of an attorney-in-fact, notice of the time and place of the hearing, together with a copy of the petition, shall be served on the third person in the manner provided in Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure.

Section 413.10 is the section requiring personal service of a summons. (See also CCP, § 415.10.)

Improper Caption. The Caption of this case is improper, because the caption does not reflect the real party in interest. (CCP, §367 ["Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute."].) Please amend the petition and proposed order to reflect the caption of the case as "In re: Matter of May Romek".

Judges

Judge Denise M. Hippach

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